

PLAINTIFF’S MOTION FOR DETERMINATION OF ATTORNEY FEES AND COSTS
UNDER SETTLEMENT AGREEMENT

TENTATIVE RULING: The matter is CONTINUED to September 23, 2026 at 8:30 a.m. in Dept. A. The September 2, 2026 OSC re Dismissal is continued to October 28, 2026 at 8:30 am in Dept. A.

Moving party failed to include in the notice of the motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to (1) prepare an Amended Notice which contains the continued hearing date, as well as notice of the Court’s tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice to all other parties, and (3) file a proof of service of the Amended Notice pursuant to Rules of Court, rule 3.1300, subd. (c).

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Water Audit California v. County of Napa et al

25CV002032

[1] [COUNTY DEFENDANTS’] MOTION TO STRIKE PORTIONS OF THIRD
AMENDED VERIFIED PETITION FOR ADMINISTRATIVE WRIT OF MANDATE
AND WRIT OF MANDATE AND COMPLAINT FOR INJUNCTIVE RELIEF

TENTATIVE RULING: The motion is GRANTED IN PART. The Court orders the following STRICKEN from the Third Amended Verified Petition: the individually named defendants in the caption; Paragraphs 16, and 339 through 344 in their entirety; and Paragraphs 3-5 of the Prayer for Relief. The Motion is DENIED in all other respects.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Defendants and Respondents Napa County, Napa County Planning Commission, Napa County Board of Supervisors, Joelle Gallagher, Liz Alessio, Anne Cottrell, Amber Manfree, Belia Ramos (Napa County Board of Supervisors Members), Kara Brunzell, Walter Brooks, Pete Richmond and Megan Dameron (Napa Planning Commission Members) (collectively, County Defendants) move, pursuant to Code of Civil Procedure sections 435 and 436, and California Rules of Court, Rule 3.1322, to strike certain portions of the Third Amended Verified Petition

for Administrative Writ of Mandate and Writ of Mandate and Complaint for Injunctive Relief(TAP), filed by Petitioner Water Audit California (WAC or Petitioner).

Petitioner filed the operative Third Amended Verified Petition (TAP) following the Court’s order sustaining the demurrer of co-defendant Bonny’s Vineyard to the Second Amended Verified Petition. (See Minute Order of May 27, 2026.) Therein, the Court granted Petitioner limited leave to amend. “Petitioner is granted 10 Court days’ leave to file a further amended Petition; limited, however, to alleging facts: (1) entitling Petitioner to a writ of mandamus for acts or omissions of Respondent other than noncompliance with the California Environmental Quality Act (CEQA), if appropriate; (2) sufficient to state a claim for violation of the Public Trust Doctrine; and/or (3) sufficient to state a claim for violation of Article I, Section 7 of the California Constitution.” (*Ibid.*)

Petitioner filed the TAP on June 10, 2026.

B. LEGAL BACKGROUND

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. §436.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (*Id.* at §437, subd. (a).) In ruling on a motion to strike, the Court is to “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Turman v. Turning Point of Central Cal., Inc.*, *supra*, 191 Cal.App.4th at 63.)

“The appropriate procedural device for challenging a portion of a cause of action seeking an improper remedy is a motion to strike.” (*Caliber Bodyworks, Inc. v. Superior Court* (2005) 134 Cal.App.4th 365, 385.) However, a motion to strike cannot be made to serve the purpose of a special demurrer. (*Allerton v. King* (1929) 96 Cal.App.230, 234.)

C. LEGAL ANALYSIS

1. Petitioner Was Not Granted Leave to Add Defendants

County Defendants first seek to strike those portions of the TAP that purport to assert causes of action against Joelle Gallagher, Liz Alessio, Anne Cottrell, Amber Manfree, and Belia Ramos (Napa County Board of Supervisors members), and Kara Brunzell, Walter Brooks, Pete Richmond, and Megan Dameron (Napa County Planning Commission members).

No claims were asserted against any of these defendants through the SAP.

“Following an order sustaining a demurrer . . . with leave to amend, the plaintiff may amend his or her complaint only as authorized by the court’s order. The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless

the new cause of action is within the scope of the order granting leave to amend.” (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456 (*Zakk*).)

Petitioner was not granted leave to assert claims against these defendants. As such, the Motion to Strike is GRANTED as to the caption² and Paragraph 16, in its entirety.

The Court finds, however, that the allegations of acts, statements, and/or omissions by these individuals are, as a consequence of the individuals’ respective positions with the County, potentially relevant to Petitioner’s claims against the County. The Motion is, therefore, DENIED as to Paragraphs 188-191.

2. Petitioner was Not Granted Leave to Add a Cause of Action for Declaratory Relief

The TAP includes a cause of action for declaratory relief. (See *id.*, ¶¶ 339-344, at 39:23, *et seq.*) No such cause of action was asserted through the SAP.³ Petitioner was not granted leave to add a new cause of action to the TAP. (See *Zakk*, *supra*, at 33 Cal.App.5th 431, 456 [“The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend”].)

The Motion to Strike is, therefore GRANTED as to the fifth cause of action for declaratory relief at Paragraphs 339 through 344 of the Petition, as well as Paragraphs 3-5 of the Prayer for Relief section of the TAP.

3. The Motion is Denied in All other Respects

County Defendants ask the Court to strike references to Article X, Section 2 of the California Constitution. The Court acknowledges that the SAC did not contain references to Article X, Section 2 of the California Constitution.

As County Defendants concede, however, these references simply articulate a new legal theory. (See, *e.g.*, Support Memorandum at 5:7.) A party is not required to specifically articulate the legal theory by which they seek relief in a pleading. (See Code Civ. Proc., § 425.10 [“A Complaint . . . shall contain . . . [a] statement of the facts constituting the cause of action, in ordinary and concise language . . . [and] . . . [a] demand for judgment for the relief to which the pleader claims to be entitled”].) These References in the TAP appear to be included in relation to Petitioner’s causes of action for a writ of mandate. (See, *e.g.*, *id.* at ¶ 83.)

The Court further acknowledges that a party is not required, or encouraged to include legal citations in a complaint. However, the Court does not find that the limited citations to this section of the Constitution unnecessarily confuse the allegations or seek to add any new cause of action to the litigation.

² The Court notes that the official Caption of a case does not change regardless of whether parties are joined or dismissed from the action.

³ While the SAC made vague, abstract references to “declaratory relief” it did not, so far as the Court can find, contain allegations specifically defining the declaration sought or pleading facts establishing the elements thereof.

County Defendants ask the Court to strike the allegations of Paragraphs 22-28. These allegations were included in the SAP. (See *id.* at ¶¶ 16-22.) County Defendants fail to persuade the Court that they are improper or non-conforming or should, for any other reason, be stricken from the TAP.

[2] [BONNY'S VINEYARD'S] MOTION TO STRIKE WATER AUDIT'S THIRD AMENDED VERIFIED PETITION FOR ADMINISTRATIVE WRIT OF MANDATE AND WRIT OF MANDATE AND COMPLAINT FOR INJUNCTIVE RELIEF

TENTATIVE RULING: The motion is GRANTED IN PART. The Court orders the following STRICKEN from the Third Amended Verified Petition: Paragraphs 339 through 344, in their entirety, and Paragraphs 3 through 5 of the Prayer for Relief. The Motion is DENIED in all other respects.

Real Party in Interest Bonny's Vineyard (Bonny's) moves, pursuant to Code of Civil Procedure 435 subdivision (b)(1) and 436 (a), to strike certain portions of the Third Amended Verified Petition for Administrative Writ of Mandate and Writ of Mandate and Complaint for Injunctive Relief (TAP), filed by Petitioner WATER AUDIT CALIFORNIA (Petitioner).

Bonny's first moves to strike the first, second, third, and fourth causes of action on grounds that they are barred by the statute of limitations.

A general demurrer will lie "where the complaint has included allegations that clearly disclose some defense or bar to recovery." (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) A motion to strike cannot be made to serve the purpose of a special demurrer. (*Allerton v. King* (1929) 96 Cal.App.230, 234.)

Bonny's raises the same issue through its concurrent demurrer to the TAP.

Based on the foregoing, Bonny's Motion to Strike is DENIED as to the first through fourth causes of action.

Bonny's moves to strike the fifth cause of action for declaratory relief. (See TAP, ¶¶ 339-344, at 39:23, *et seq.*) No such cause of action was asserted through the SAP.⁴ Petitioner was not granted leave to add a new cause of action to the TAP. (See *Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456 (*Zakk*) ["The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend".])

The Motion to Strike is, therefore GRANTED as to the fifth cause of action for declaratory relief at Paragraphs 339 through 344 of the Petition, as well as Paragraphs 3-5 of the Prayer for Relief section of the TAP.

⁴ While the SAC made vague, abstract references to "declaratory relief" it did not, so far as the Court can find, contain allegations specifically defining the declaration sought or pleading facts establishing the elements thereof.

- [3] [COUNTY DEFENDANTS'] DEMURRER TO THIRD AMENDED VERIFIED PETITION FOR ADMINISTRATIVE WRIT OF MANDATE AND WRIT OF MANDATE AND COMPLAINT FOR INJUNCTIVE RELIEF
- [4] [BONNY'S VINEYARD'S] DEMURRER TO PETITIONER'S THIRD AMENDED VERIFIED PETITION FOR ADMINISTRATIVE WRIT OF MANDATE AND WRIT OF MANDATE AND COMPLAINT FOR INJUNCTIVE RELIEF

TENTATIVE RULING: The demurrers are each SUSTAINED WITHOUT LEAVE TO AMEND.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Defendants and Respondents Napa County, Napa County Planning Commission, Napa County Board of Supervisors, Joelle Gallagher, Liz Alessio, Anne Cottrell, Amber Manfree, Belia Ramos (Napa County Board of Supervisors Members), Kara Brunzell, Walter Brooks, Pete Richmond and Megan Dameron (Napa Planning Commission Members) (collectively, County Defendants) demur, pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), and Government Code section 65009, subdivision (c)(1)(E), to the Third Amended Verified Petition for Administrative Writ of Mandate and Writ of Mandate and Complaint for Injunctive Relief (TAP), filed by Petitioner Water Audit California (WAC or Petitioner). County Defendants contend that the TAP fails to allege facts sufficient to sustain any of the five asserted causes of action, and that each is time barred and/or fatally uncertain.

Real Party in Interest Bonny's Vineyard (Bonny's) joins in the County Defendants' Demurrer. Bonny's also independently demurs to the TAP on grounds that "(1) The Petition is barred by the applicable statute of limitations and is therefore untimely as a matter of law; (2) Petitioner failed to join indispensable parties and failed to exhaust administrative remedies, requiring dismissal pursuant to Code of Civil Procedure section 389; (3) the Petition is uncertain, ambiguous, and unintelligible within the meaning of Code of Civil Procedure section 430.10(f); and (4) the Petition fails to state facts sufficient to constitute a cause of action against Defendant under Code of Civil Procedure section 430.10(e), including because of the allegations are contradicted by matters subject to judicial notice." (Notice of Demurrer at 2:2-8.)

Because the demurrers, and Petitioner's respective Opposition briefs thereto, raise largely overlapping issues and assert largely overlapping arguments, the Court addresses both, collectively, by this ruling.

Except as discussed below, the subject matters of the requests for judicial notice are not relevant to the Court's analysis of the instant demurrers and, for this reason, the Court declines to rule on those requests. (See *In re Tobacco Cases, II*, JCCP 4042 (2004) 123 Cal.App.4th 617, 626 ["Although a court may take judicial notice of a variety of matters, only relevant material may be noticed."].)

B. LEGAL ANALYSIS

1. The Claims Challenging the Bonny's Use Permit are Necessarily Time Barred

A general demurrer will lie "where the complaint has included allegations that clearly disclose some defense or bar to recovery." (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) Where a plaintiff has pled facts that appear to demonstrate an affirmative defense to the claims, they must then "plead around" the defense by alleging facts sufficient to avoid the apparent defense. (See *Gentry v. eBay Inc.* (2002) 99 Cal.App.4th 816, 825.) However, "[a] demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]' [Citation.]" (*Geneva Towers Ltd. Partnership v. City and County of San Francisco* (2003) 29 Cal.4th 769, 781.)

County Defendants and Bonny's argue that each cause of action seeking to "attack, review, set aside, void, or annul" the use permit issued to co-defendant Bonny's Vineyard is barred by the limitations period provided for in Government Code section 65009, subdivision (c)(1)(E). That statute provides that, with exceptions having no apparent relevance here, no action to attack, review, set aside, void, or annul any decision to determine the reasonableness, legality, or validity of any condition attached to a variance, conditional use permit, or any other permit may be maintained unless it is "commenced and service is made on the legislative body within 90 days after the legislative body's decision" (*Ibid.*)

Petitioner alleges that on June 24, 2025, the County Board of Supervisors denied Petitioner's appeal of the Planning Commission's approval of Bonny's Vineyard Use Permit No. P22-00002-UP (Bonny's Use Permit). (See TAP at ¶¶ 4, 144-146.) Pursuant to Government Code section 65009, subdivision (c)(1)(E), any action challenging that decision had to have been filed *and served* on or before September 22, 2025.

The Court takes judicial notice of its files in the action, and finds that the Proof of Service of Summons on Napa County, filed by Petitioner on October 17, 2025, evidences service on the County on October 6, 2025. Because Petitioner failed to serve Napa County within 90 days of the Board of Supervisor's decision on Bonny's Use Permit, it appears that its causes of action challenging the issuance of that use permit are time-barred.

Through the Opposition, Petitioner argues that “[w]here clerk processing delays the issuance of the summons a petitioner must serve, the doctrine of constructive filing and ordinary equitable principles preclude converting the clerk’s timeline into a forfeiture.” (*Id.* at 11:27-29.) “[Equitable principals] apply with full force where the clerk’s own delay in accepting the petition and issuing the summons made service legally impossible until the summons issued.” (*Id.* at 12:7-9.) Finally, Petitioner argues that “[t]o the extent the County contends that Water Audit could not in any event have served within the statutory window, that contention rests on speculation about what the clerk would have done with a timely-tendered petition, and speculation cannot support a demurrer.” (*Id.* at 13:4-6.) The Court disagrees that the County Defendants’ and Bonny’s’ “contention rests on speculation.”

On October 10, 2025, Petitioner applied, *ex parte* for a *nunc pro tunc* order deeming the Petition filed on September 22, 2025. In support of that application, Petitioner submitted “a true and correct copy of the filing receipt from September 22, 2025.” (Declaration of Linda Ghiringhelli at ¶ 3, Exh. 1 (Ghiringhelli Decl.)) That filing receipt states that the original Petition was uploaded into OneLegal for electronic filing with the Court, at 7:02 P.M. on September 22, 2025. (See *id.* at Exh. 1.) The Court takes judicial notice of the fact that its business hours have, from 2025 through the present, been Monday through Friday, excepting Court holidays, from 8:00 a.m. to 5:00 p.m. Thus, the Ghiringhelli Decl. demonstrates that Petitioner did not submit the original Petition *for filing* until after the close of business on September 22, 2025.

A Clerk may issue a summons only after the filing of a case and payment of fees. (See Code Civ. Proc., § 412.10 “[a]fter payment of all applicable fees, the plaintiff may have the clerk issue one or more summons for any defendant”]; see also *Maginn v. City of Glendale* (1999), 72 Cal.App.4th 1102, 1107.) Because Petitioner’s filing demonstrates that the original Petition was not submitted *for filing* until after the Court’s close of business on September 22, 2025, there is no possibility that the Clerk would have issued the summons on that day. For this reason, there is no possibility that Petitioner could have effectuated service of that summons on the County on that day.

Based on the foregoing, the Court finds that Petitioner’s claims based on allegations that the County’s issuance of Bonny’s Use Permit was improper and/or seeking to review that decision, and/or set aside, void, or annul that use permit, are necessarily time-barred. There appears to be no other basis in support of Petitioner’s First Cause of Action for Writ of Administrative Mandate and therefore the demurrer is sustained in its entirety as to that cause of action. To the extent there are claims *other than* those seeking to attack, review, set aside, void, or annul the Bonny’s Use Permit asserted in the Second through Fourth Causes of Action, they are discussed below.

Given the nature of the foregoing, the Court finds no possibility that Petitioner can amend the Petition to “plead around” this bar.

2. The TAP Fails to State Any Other Cause of Action

Through its Opposition to the County Defendant's demurrer, Petitioner asserts that "[t]he TAC's core prospective claims, to compel the County's performance of its continuing public trust duty of supervision and its mandatory procedures in current and future proceedings, attack no permit and seek no vacatur and the TAC expressly disclaims any challenge to the representative-project approvals." (Opposition at 7:21-24.) The portions of the TAP cited by Petitioner in support of this statement make clear that the *only* past decision that gives rise to one or more claims asserted through the TAC is the Bonny's Use Permit discussed above. (See TAP at ¶¶ 35-36, 134-136, 164, and 311.) As discussed above, these claims are time barred.

Through the TAP, Petitioner asserts "Petitioner seeks relief directed exclusively toward future compliance with applicable law. The controversy presented is prospective and concerns Respondents' current and continuing administration of land-use proceedings, groundwater review, public trust obligations, hearing procedures, appeal procedures, and maintenance of administrative records." (*Id.* at ¶ 136.)

By the foregoing, Petitioner appears to suggest that, by the TAP, it seeks an order directing the County to abide by the law in future decision making. The TAP does not, however, specifically articulate what type of order Petitioner seeks; Petitioner fails to explain the form that "relief directed exclusively toward future compliance with applicable law" would take. Moreover, the Court is aware of no authority by which the Court may make such an order.

With regard to Petitioner's Second Cause of Action for Traditional Mandamus, "[a] [traditional] writ of mandate may be issued by any court to any inferior tribunal, corporation, board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station, or to compel the admission of a party to the use and enjoyment of a right or office to which the party is entitled, and from which the party is unlawfully precluded by that inferior tribunal, corporation, board, or person." (Code Civ. Proc., § 1085.) "Mandate will lie where the respondent has a clear, *present* and usually ministerial duty and the petitioner has a clear, *present* and beneficial right to performance of that duty." (*Gilbert v. Cal.* (1990) 218 Cal.App.3d 234, 241. Italics added.)

It appears, to the Court, that any such relief would be inappropriate as, "the basis for the action must be a clear present duty to perform the act sought to be compelled; the writ will not be granted merely in anticipation that the party will refuse to perform the duty when the time comes." (*Brandt v. Bd. of Supervisors* (1978) 84 Cal.App.3d 598, 600-601.)

As to Petitioner's Third Cause of Action for Violation of the Public Trust Doctrine, the state's duty is "to take the public trust into account *in the planning and allocation* of water resources, and to protect public trust uses whenever feasible." (*National Audubon Society v. Super. Ct.* (1983) 33 Cal.3d 419, 446. Italics added.) "[G]overnment has a duty to consider the public trust interest *when making decisions impacting water* that is imbued with the public trust." (*ELF, supra*, 26 Cal.App.5th at 865. Italics added.) While a petitioner may, properly, challenge a specific failure by an agency to comply with its administrative obligations, "pattern and practice" challenges based on the Public Trust Doctrine are "particularly ill-suited to traditional mandamus." (*Monterey Coastkeeper v. California Regional Water Quality Control Bd., etc.* (2022) 76 Cal.App.5th 1, 22 (*Monterey Coastkeeper*)). "Simply ordering the [agency] to apply

the public trust doctrine would be an empty judgment, while actually determining whether the [agency] is properly applying the doctrine would necessarily require the trial court to consider the many decisions within the [agency's] mandate, decisions that will typically require the exercise of administrative discretion and will often require technical expertise.” (*Ibid.*) “This inherently discretionary doctrine generally does not allow for intervention by the courts other than in the context of judicial review of administrative decisions. “Intervention by the courts [through a separate lawsuit under the public trust doctrine], other than by exercising oversight over the administrative process and ensuring that proper standards are applied, not only would threaten duplication of effort and inconsistency of results, but would require courts to perform an ongoing regulatory role as technology evolves and conditions change.” [Citation.]” (*Citizens for East Shore Parks v. State Lands Com.* (2011) 202 Cal.App.4th 549, 577–578.)

The Fourth Cause of Action for Violation of California Constitution Article I, Section 7 is a mixed cause of action. The allegations of paragraphs 328-332 clearly relate specifically to the administrative procedures leading to the approval of the Bonny’s Use Permit. The claim based on these allegations is time barred for the reasons discussed above.

Thereafter, Petitioner alleges that “Respondents apply procedural requirements inconsistently among similarly situated applicants and appellants . . . selectively enforce mandatory procedures . . . [and] . . . have adopted customs and practices resulting in unequal treatment and arbitrary administration of governmental processes. (See TAP at ¶¶ 333-335.)

Petitioner fails, however, to explain how these allegations constitute a violation of *Petitioner’s* right to due process.

“[A]n overarching, quasi-legislative policy set by an administrative agency . . . is subject to review in an action for declaratory relief.” (*Californians for Native Salmon Etc. Ass’n v. Dep’t of Forestry* (1990) 221 Cal.App.3d 1419, 1429 [271 Cal.Rptr. 270].)

As noted in the concurrent rulings on Respondents’ and Bonny’s respective Motions to Strike, however, Petitioner did not assert a claim for Declaratory Relief in any prior version of the operative petition, was not granted leave to add such claim to the TAP, and has not moved for such leave. (See California Rules of Court, rule 3.1324 [requirements for a motion for leave to amend a pleading before trial].)

Even after multiple reviews of the TAP, the Court is simply unable to meaningfully connect Petitioner’s arguments regarding the nature of the surviving “prospective” claims – cited and quoted above – with allegations that state a cause of action for traditional mandamus, violation of the public trust doctrine, or violation of Petitioner’s due process rights. Put another way, the Court is unable, from a review of the TAP, to find allegations that adequately state any “prospective” public trust and/or mandamus claim. (See Code Civ. Proc., § 425.10, subd. (a)(1) [providing that a complaint must contain ‘facts constituting the cause of action’]; see also Code Civ. Proc., § 430.10, subd. (e) [“The party against whom a complaint . . . has been filed may object, by demurrer . . . , to the pleading on . . . grounds . . . [t]he pleading does not state facts sufficient to constitute a cause of action”].)

For the foregoing reasons, the demurrers are, each, SUSTAINED.

3. Leave to Amend

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) However, the pleading party bears the burden of showing such reasonable possibility. (*Ibid.*) Here, the burden is on Plaintiff to show in what manner it can amend the complaint, and how that amendment will change the legal effect of the pleading. (*Ibid.*; *Medina v. Safe Guard Products* (2008) 164 Cal.App.4th 105, 112 n.8; see also *Heritage Pac. Fin'l, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 994 [court did not abuse discretion in denying leave to amend where, despite ample opportunity, plaintiff failed to demonstrate it could cure defect].)

As County Defendants and Bonny's note, Petitioner has now had four attempts at stating a good claim in this action. While Petitioner requests leave to amend through its Opposition briefs, it makes no effort to suggest in what manner it can amend to state a good claim. Based on the nature of the allegations in the TAP, the arguments advanced through the Opposition, and the history of the pleading in this action, it is entirely unclear, to the Court, how Petitioner could amend the TAP to state any valid claim.

Based on the foregoing, the demurrers are, each, SUSTAINED WITHOUT LEAVE TO AMEND.

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In the Matter of Sara Perez

26CV001110

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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In The Matter of Ricardo Efren Ponce Rico

26CV001306

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on June 23, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court's file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to September 10, 2026, at 8:30 a.m. in Dept. A to provide any publisher time to file the POP.